

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index #

THEODORE MASSIAH

Date Filed:

Plaintiff designates

New York County
as place of trial

Plaintiffs,

-against-

The basis of venue is

**CITY OF NEW YORK
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER SERGEANT SAWYER Shield 875
In his Official and Individual Capacities
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER YONG Shield 563
In his Official and Individual Capacities
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER LARRY FENG
In his Official and Individual Capacities
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER SERGEANT BROWN
In his Official and Individual Capacities
JOHN DOES NO. 1 through 3 As Yet Unidentified
New York City Department of Homeless Services Police Officers
In Their Official and Individual Capacities
Defendants**

**Site of Occurrence
Plaintiff Massiah
resides at
2010 Powell Avenue
Bronx New York 10472**

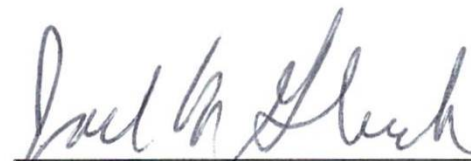
SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance , on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer,

judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 28, 2019
New York N.Y.



JOEL M. GLUCK
Attorney for Plaintiff
305 Broadway Suite 1427
New York, N.Y. 10007
(212) 323-7432

Defendants' Addresses:

CITY OF NEW YORK
One Centre Street
New York, N.Y. 10007

NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER
SREGEANT SAWYER (Badge 875)
c/o Commissioner of Homeless Services
33 Beaver Street
New York, N.Y. 10004

NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER
POLICE OFFICER YONG Shield 563
c/o Commissioner of Homeless Services
33 Beaver Street
New York, N.Y. 10004

NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER
LARRY FENG
c/o Commissioner of Homeless Services

33 Beaver Street
New York, N.Y. 10004

NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICER POLICE OFFICER SERGEANT BROWN
c/o Commissioner of Homeless Services
33 Beaver Street
New York, N.Y. 10004

NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES
POLICE OFFICERS
JOHN DOES NO. 1 through 3 As Yet Unidentified
Department of Homeless Services Police Officer
c/o Commissioner of Homeless Services
33 Beaver Street
New York, N.Y. 10004

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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index #

Date Filed

-----X
THEODORE MASSIAH

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK

CITY OF NEW YORK

DEPARTMENT OF HOMELESS SERVICES

POLICE OFFICER SERGEANT SAWYER Shield 875

In his Official and Individual Capacities

DEPARTMENT OF HOMELESS SERVICES

POLICE OFFICER YONG Shield 563

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New York City Department of Homeless Services Police Officers

In Their Official and Individual Capacities

Defendants

-----X

The plaintiff, **THEODORE MASSIAH** by his

attorney **JOEL M. GLUCK**, as for his verified complaint respectfully allege as follows:

1. Plaintiff, **THEODORE MASSIAH** was on the date of occurrence herein and is at present a resident of the State of New York, County of Bronx and at the time of the occurrence described herein and at present has a residence at 2010 Powell Avenue Bronx New York 10472.

2. That on the date of the occurrence described herein, Defendant CITY OF NEW YORK was a municipal corporation organized under the laws of the State of New York with Office of the Comptroller at 1 Centre Street New York

3. That the defendant CITY OF NEW YORK operates a municipal Department known as the Department of Homeless Services, which among its other duties operates a Police Force organized under the Laws of the State and City of New York.

4. That on the date of the occurrence described herein, the defendant CITY OF NEW YORK Department of Homeless Services operated a Men's Shelter at 400 East 30th Street New York, New York.

5. That on the date of the occurrence described herein, Department of Homeless Services Police Officer Sergeant Sawyer Shield No. 875 was an employee was of the New York City Department of Homeless Services and on information and belief was assigned to work at the Men's Shelter at 400 East 30th Street New York, N.Y.

6. That on the date of the occurrence described herein, Department of Homeless Services Police Officer Yong was an employee was of the New York City Department of Homeless Services and on information and belief was assigned to work at the Men's Shelter at 400 East 30th Street New York, N.Y.

7. That on the date of the occurrence described herein, Department of Homeless Services Police Officer Larry Feng Shield No, 563 was an employee was of the New York City Department of Homeless Services and on information and belief was assigned to work at the Men's Shelter at 400 East 30th Street New York, N.Y.

8. That on the date of the occurrence described herein, Department of Homeless Services Police Officer Sergeant Brown was an employee was of the New York City Department of Homeless Services and on information and belief was assigned to work at the Men's Shelter at 400 East 30th Street New York, N.Y.

9. That on the date of the occurrence described herein, Department of Homeless Services Police Officers JOHN DOES No. 1-3 were employees of the New York City Department of Homeless Services and on information and belief were assigned to work at the Men's Shelter at 400 East 30th Street New York, N.Y.

10. That at all times relevant herein, the CITY OF NEW YORK, acting through the New York City Department of Homeless Services Police Department was responsible for the policy, practice, supervision, implementation and conduct

of Department of Homeless Services (hereinafter DHS) Police in their official duties to police and maintain security at shelters operated by the DHS and was responsible for the appointment, training, supervision and conduct of the DHS Police Officers and for the individual Police Officer Defendants named herein.

11. At all times relevant herein the defendant, CITY OF NEW YORK was responsible for ensuring that the DHS POLICE DEPARTMENT personnel, including the individual named DHS Defendants, obey the laws of the United States, and New York State including the Constitution of the United States and the State of New York.

12. That the Defendant CITY OF NEW YORK assumes the risk incidental to the maintenance of a police force and the risks incidental to the conduct of individual officers, including those named herein.

13. That the CITY OF NEW YORK is responsible for the practices, policies and customs of the NEW YORK CITY DHS POLICE as well as the hiring, screening, training, supervising, controlling, retaining and disciplining of the persons so employed by the New York City DHS including the individual defendants named herein.

14. At all times herein after mentioned, the individual Defendants named in this Complaint were, on information and belief, assigned to the DHS Men's Shelter at 400 East 30th Street New York, N.Y.

15. On October 29, 2017, the NEW YORK CITY DHS employed the aforementioned DHS Police Officers who were agents, servants and/or employees of the New York City Department of Homeless Services.

16. At all times hereinafter mentioned, the individually named Defendants were at all times acting under color of state law, under the color of the statutes, ordinances, customs, policies and practices of the State of New York, City of New York and were also acting within the scope of and in furtherance of their employment when engaging in the conduct described herein.

17. That Defendant CITY OF NEW YORK, is liable directly and vicariously for conduct of the Individually named Defendants which while acting within the scope of their duties, inured to and was performed for their personal benefit.

18. That on the date of the occurrence described herein, most particularly October 29, 2017, Plaintiff THEODORE MASSIAH was residing at the DHS Men's Shelter at 400 East 30th Street New York New York and was entitled to an expectation of privacy and freedom from unlawful search of his person under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

19. At all times relevant herein, most particularly on October 29, 2017 Plaintiff THEODORE MASSIAH was entitled to an expectation of privacy and

freedom from unlawful seizure of his person under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

20. That at all times relevant herein, Plaintiff THEODORE MASSIAH had an expectation that on his arrest, whether lawful or unlawful, the DHS Police Officers would take reasonable care and avoid the use of excessive and unnecessary force in restraining him and that he would be protected from injury to his person during any arrest and confinement whether lawful or unlawful.

21. That on October 29, 2017 the Plaintiff was lawfully attempting to enter the premises of the DHS Men's Shelter at 400 East 30th Street New York, New York.

22. That on October 29, 2017 on or about 10:00 PM the Individually named defendants, herein searched the Plaintiff on his entry into the above named shelter and thereafter searched the locker assigned to him at the Shelter and there after arrested the Plaintiff for Unlawful Possession of Marijuana.

23. That on October 29, 2017 the Individually named defendant defendants issued a summons to the Plaintiff to appear in Criminal Court for the offense of Unlawful Possession of Marijuana.

24. That on October 29, 2017 the Defendant CITY OF NEW YORK by its agents, servants and employees, restrained the Plaintiff and handcuffed using excessive force causing him injury to both hands and wrists.

25. That on October 29, 2017 the Defendant CITY OF NEW YORK and the individually named defendants restrained the Plaintiff in handcuffs, in a manner intended to cause him physical pain and injury.

26. In effecting the restraint and detention of the Plaintiff, the said defendants, their employees, agents, servants and employees acted in concert.

27 That the above Plaintiff was arrested by the Individual Defendants named herein acting within the scope of their authority and employment and their acts were done in furtherance of the business of the Defendant CITY OF NEW YORK.

28. That the Plaintiff herein, as a result of their illegal, unwarranted restrain, detention and arrest, lost their liberty and suffered both physical and emotional injury.

29. That the Plaintiff herein, as a result of the illegal, unwarranted restraint detention and arrest, suffered mental pain. emotional distress, anguish, humiliation, shame, disgrace.

30. That months after the issuance of a summons to the Plaintiff, all charges against the Plaintiff was dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT / BATTERY**

31. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

32. That the arrest of the Plaintiff THEODRE MASSIAH his restraint and detention was without justification, provocation, probable cause, and was done wantonly, maliciously, recklessly without any fault on the part of the Plaintiff and contrary to law.

33. That said restraint and detention constituted a battery against the Plaintiffs herein

34. That solely as a result of the above actions of the Defendants, and without any contribution on the part of the Plaintiffs, the Plaintiffs herein suffered emotional pain, anguish, mental distress.

35. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A SECOND CAUSE OF ACTION
42 U.S.C. § 1983 EXCESSIVE FORCE**

36. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

37. By using excessive, unnecessary unwarranted and unjustifiable force in placing the Plaintiff under arrest the individual defendants named herein, Defendants, DHS Police Officers SAWYER, YONG, FENG, BROWN and

JOHN DOES 1-3 violated the Plaintiff's rights under the Eighth and Fourteenth Amendments of the U.S. Constitution under color of law, specifically the right to be free from the use of excessive force under color of law.

38. By reason of the foregoing acts the above named defendants violated the Plaintiff's Constitutional rights under 42 U.S. C. § 1983 and caused the Plaintiff to suffer physical injuries, emotional injuries, mental anguish and loss of his constitutional rights.

**AS AND FOR A THIRD CAUSE OF ACTION
UNDER 42 U.S.C. § 1983 - ASSAULT**

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

40. While acting under color of state law, the above named defendants, DHS Police Officers SAWYER, YONG, FENG, BROWN and JOHN DOES 1-3 committed an intentional and violent assault against Plaintiff without legal cause or justification and in violation of his rights under the Fourth, Eighth and Fourteenth Amendments of the United States Constitution.

41. By reason thereof, the above named defendants violated 42 U.S. C. § 1983 and caused the Plaintiff to suffer physical injuries, emotional injury, mental anguish and loss of his constitutional rights.

**AS AND FOR A FOURTH CAUSE OF ACTION
(Under 42 U.S.C. § 1983)**

42. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

43. Defendants under color of state law, subjected the Plaintiff THEODORE MASSIAH to the foregoing acts and omissions thereby depriving the plaintiff of the rights privileges and immunities secured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution including without limitation deprivation of the following rights: (a) freedom from unreasonable search of their person; (b) freedom from unreasonable seizure of their person;

44. That the arrest and detention of the Plaintiff was effectuated by the Defendants without probable cause or any semblance of a lawful basis.

45. That the arrest and detention of the Plaintiff by the Defendants was a false arrest false imprisonment, an unjust imprisonment done without any warrant or pretense of legal process, maliciously and without reasonable basis or probable cause.

46. Solely by reason of the foregoing and without contribution or provocation on the part of the Plaintiffs, the actions of the Defendants deprived the Plaintiff of his liberty, subjected him to ridicule and derision by those aware

of his arrest.

47. By reasons of the Defendants violation of the Plaintiff's rights under the U.S. Constitution and the New York State Constitution protected from deprivation under 42 U.S. C. § 1983, Plaintiffs were caused to suffer emotional injuries mental anguish, loss of constitutional rights and physical injury as described herein.

48. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A FIFTH CAUSE OF ACTION
(MONELL CLAIM)**

49. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

50. All of the acts and omissions by the named and unnamed defendant DHS Police Officers were carried out pursuant to overlapping policies and practices of the City of New York and the New York City Department of Homeless Services Police Department were in existence at the time of the conduct alleged herein and were engaged in with full knowledge, consent and cooperation and under supervisory authority of the Defendant CITY OF NEW YORK and New York City Department of Homeless Services.

51. Defendant CITY OF NEW YORK, by their policy making agents, servants and employees authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or encouraged those acts to continue.

52. The actions of the individual police defendants resulted from and were taken pursuant to the following de facto policies and or well settled customs and practices of the CITY OF NEW YORK and NEW YORK DEPARTMENT OF HOMELESS SERVICES POLICE:

(a) Members of the DHS Police were encouraged to engage in unlawful and unconstitutional violations, including but not limited to unauthorized searches and arrests, without probable cause,

(b) Failed to properly train DHS Police in safe and proper use of handcuffs for restraint thereby making injury due to excessive force and improper application of handcuffs reasonably likely.

53. The Defendant CITY OF NEW YORK, established a custom, policy or practice of encouraging, approving or tolerating the DHS Police's acts of misconduct, in particular, unauthorized search and seizure, unlawful arrest, restraint and detention and use of excessive force in restraint.

54. The Defendants were deliberately indifferent to the use of improper procedures in the arrest and detention of civilians and established a custom, policy

and practice of encouraging, approving and/or tolerating the use of improper procedures by the New York City DHS Police

55. The defendants' actions were undertaken under color of state law and would not have existed but for said defendants' use of their official power.

56. At all times relevant to the complaint herein, the defendant municipality, CITY OF NEW YORK, had de facto policies, practices, customs and usages, including but not limited to the improper and inadequate supervision of the DHS Police Officers, in particular, those assigned to the Men's Shelter at 400 East 30th Street, New York, N.Y which were a direct and proximate cause of the unconstitutional conduct alleged herein.

57. At all times relevant to the complaint herein, defendant CITY OF NEW YORK, failed to properly train, screen, supervise or discipline its employees and police officers, including individual defendants named herein and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.

58. The policies, practices, customs and usages and the failure to properly train, screen, supervise or discipline were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of the Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution.

59. As a result of the foregoing, the Plaintiffs suffered emotional distress and were otherwise damaged and injured.

60. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A SIXTH CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)**

61. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

62. That on October 29, 2017, the Plaintiff was detained, arrested, restrained and lost his liberty due to the intentional and malicious acts of the individual Defendants, acting within the scope of their duties

63. That Plaintiff was conscious of and did not consent to his arrest, restraint, and loss of liberty.

64. That the actions of the defendants to arrest, restrain and imprison the Plaintiffs were not privileged, warranted, justified or supported by probable cause and were done with malice and with reckless disregard to the rights of the Plaintiff.

65. That the Defendants intended to arrest, restrain and detain the Plaintiff.

66. That solely by reason of the foregoing and without contribution or provocation on the part of the Plaintiffs, the actions of the Defendants in falsely

arresting and imprisoning the Plaintiff caused him mental injury, loss of reputation, subjected him to scorn and ridicule.

67. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction of the causes of action herein.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS)**

68. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

69. That the wrongful arrest, detention and restraint of the Plaintiff by the individual Defendants was outrageous, beyond the norms acceptable to civil society and subjected them to emotional distress and injury.

70. That the Defendants acted intentionally and with the desire to cause the Plaintiffs emotional distress and injury and verbally insulted, mocked and demeaned the Plaintiff, disparaging his status as a veteran.

71. That as a direct and proximate result of the intentional emotional injury and distress inflicted on the Plaintiffs, by the Defendants, they have been injured in an amount to be determined by the Court.

72. That the Plaintiffs sustained emotional injury mental anguish, humiliation and ridicule as a result of their prosecution by the Defendants and

were injured in an amount to be determined by the Court.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
(NEGLIGENCE)**

73. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

74. That on October 29, 2017, the individually named defendant DHS Police Officers restrained the Plaintiff causing injury to his hands and wrists..

75. That above named defendants were negligent, reckless, and failed to use reasonable care in the manner of restraining and handcuffing the plaintiff.

76. That as a direct and proximate result of the negligence of the Plaintiff in handcuffing the Plaintiff, the latter sustained injury including but not limited to hands and wrists.

77. That solely as a direct and proximate result of the negligence of the defendants and without any contribution on the part of the Plaintiff the Plaintiff sustained injury, was rendered sick, sore lame and disabled and required medical treatment.

78. That the Plaintiff's damages, to be described more fully in a Bill of Particulars to be submitted hereafter, exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction of the matter herein.

79. That the Plaintiff demands trial by jury of all of the causes of action and claims herein.

80. That the Plaintiff is entitled to damages in an amount to be determined by the Court.

81. That prior to the commencement of this action and within ninety (90) days after the happening of the occurrence herein, a Notice of Claim was served upon the defendant, CITY OF NEW YORK by service on the defendant Comptroller by certified mail return receipt

82. That the New York City Comptroller's Office duly assigned a claim number to this claim, 2018 PI 003187

83. That the Claimant appeared for and participated in a statutory hearing under General Municipal Law Section 50 (h) on 11/1/2018.

84. That more than thirty days (30) have elapsed since the service of said Notices of Claim and said defendants have failed, neglected and refused to adjust same prior to the commencement of this action

85. That the plaintiff has duly complied with all statutory provisions and laws applicable to the defendants, and has duly and timely complied with all the conditions precedent to the making of this claim and the bringing of this action, and that this claim has been presented, and that this action has been commenced within the period of time prescribed and provided by statute and law and is timely commenced within a year and ninety days of the occurrence described herein.

WHEREFORE, Plaintiff demands judgment against the Defendants on the

First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action
in an amount to be determined by the Court together with the costs and
disbursements of this action

Dated: New York, New York
January 28, 2019

Yours etc.,



Joel M. Gluck, Esq.
Attorney for Plaintiff
305 Broadway Suite 1427
New York, N.Y. 10007
Tel. 212 323-7432
Fax (718) 852-0185

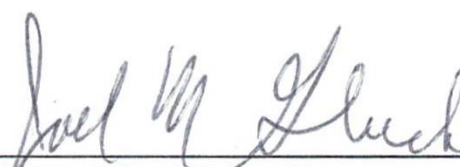
VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms under the penalties of perjury:

Affirmant has read the foregoing SUMMONS and COMPLAINT and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters, deponent believes it to be true; and the reason this verification is made by the affirmant and not by the plaintiff is because the plaintiff is not within the county where affirmant has his office. The grounds for affirmant's knowledge are communications with the plaintiff and plaintiff's records which affirmant has reviewed.

Dated: New York, N.Y.
January 28, 2019



JOEL M. GLUCK
Attorney for Plaintiff
Theodore Massiah

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index #

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Plaintiff,

-against-

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SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JOEL M. GLUCK

Attorneys for Plaintiff

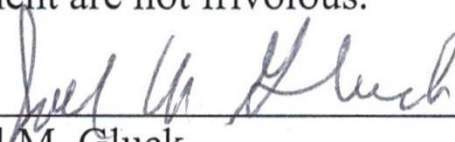
305 Broadway Suite 1427

New York NY 10007

Telephone: 212 323-7432

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 28, 2019


Joel M. Gluck